

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 16
JUDICIAL OFFICER: BENJAMIN T REYES II
HEARING DATE: 09/02/2026

**INSTRUCTIONS FOR CONTESTING TENTATIVE RULINGS
IN DEPARTMENT 16**

The tentative ruling will become the ruling of the Court unless by 4:00 P.M. of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 16 (Dept16@contracosta.courts.ca.gov) to request argument and **must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why**. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00 P.M. of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

The prevailing party must prepare and e-file a proposed order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://www.zoomgov.com/j/1619504895?pwd=N0V1N3JFRnJ0TEVoSDNrTGRzakF3UT09>

ID: 161 950 4895

Password: 812674

Courtroom Clerk's Session

1. 9:00 AM CASE NUMBER: C22-02125
CASE NAME: SAVANNAH THOMPSON VS. JOHN MUIR HEALTH
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This Case Management Conference ("CMC") is **vacated**.

2. 9:00 AM CASE NUMBER: C23-02436
CASE NAME: DENNIS WANKEN VS. NAHLA DROUBI
***FURTHER CASE MANAGEMENT CONFERENCE**

FILED BY:

TENTATIVE RULING:

This CMC trails the hearings for Lines 9 and 10. Parties are ordered to appear in person or remotely via Zoom, unless the tentative rulings for both Lines 9 and 10 are uncontested. If the tentative rulings are uncontested, the CMC is continued to December 24, 2026 at 8:30 a.m. in Dept. 16 for a trial setting conference. Parties are ordered to meet and confer regarding trial date availability.

3. 9:00 AM CASE NUMBER: C25-00925

CASE NAME: KURTIS MILLHOLLIN VS. MICHAEL ALLIO

*FURTHER CASE MANAGEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

Appearance required. Remote appearance is authorized. Plaintiff shall appear prepared to address the status and disposition of the remaining causes of action (first cause of action for fraud and fourth cause of action for unjust enrichment against Defendant Allio) following the Court's grant of summary adjudication on the second cause of action, so that a judgment may be entered. See Line 18 below.

4. 9:00 AM CASE NUMBER: C25-03012

CASE NAME: I'YOSHI BARNES VS. DOES 1 TO 30

*FURTHER CASE MANAGEMENT CONFERENCE FCMC TO TRAIL HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S COMPLAINT

FILED BY:

TENTATIVE RULING:

This CMC trails the hearing for Line 19. The Parties are ordered to appear in person or remotely via Zoom for the CMC, unless the tentative ruling for Line 18 is uncontested. If the tentative ruling is uncontested, the CMC is continued to February 25, 2027 at 8:30 in Dept. 16. The Parties are ordered to meeting and confer to discuss alternative dispute resolution.

Law & Motion

5. 9:00 AM CASE NUMBER: C22-02125

CASE NAME: SAVANNAH THOMPSON VS. JOHN MUIR HEALTH

*HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS ACTION & PAGA SET BY THE COURTROOM

FILED BY:

TENTATIVE RULING:

Summary

Plaintiff Savannah Thompson, on behalf of herself and persons similarly situated, move for Final Approval of the Class Action Settlement and Award of Attorney's Fees to Class Counsel. The Motion is **granted** as set forth herein.

Background

This action arises from allegations that Defendant John Muir Health, Inc. ("JMH") charged unconscionable "chargemaster" prices for a routine diagnostic urine test (the "Service"), pricing it at \$6,095.70 in 2022, which is almost 100 times the Medicare-allowed amount. As a result of this litigation, JMH reduced the price to \$567 effective 2023. On March 21, 2025, the court certified a class of 289 members with claims under the Consumer Legal Remedies Act ("CLRA") and Unfair Competition Law ("UCL"), including a subclass of 63 members with additional Rosenthal Fair Debt Collection Practices Act claims.

Following class certification, the parties engaged in direct, arm's-length negotiations and reached a